

Stereo. H C J D A 38

JUDGMENT SHEET
LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

C. R. No. 50-D of 2022

**Board of Intermediate & Secondary Education,
Multan through Chairman**

VERSUS

Muhammad Afzal

JUDGMENT

Date of Hearing:	19.10.2022
Petitioner by:	Mr. Muhammad Ali Siddiqui, Advocate
Respondent by:	Mr. Ali Akhtar Bodla, Advocate

ABID HUSSAIN CHATTHA, J. This Civil Revision calls into question the concurrent Judgments & Decrees dated 02.03.2021 and 11.10.2021 passed by Civil Judge, Multan and Additional District Judge, Multan, respectively.

2. Succinctly, the Respondent instituted a suit for declaration against the Petitioner seeking correction of his date of birth in his Matriculation certificate. It was alleged that birth certificate and CNIC issued by concerned Union Council and NADRA, respectively, depict the correct date of birth of the Respondent as 25.12.1990 but it was inadvertently recorded in his Matriculation certificate as 07.03.1985. Accordingly, he prayed that his date of birth recorded in the Matriculation certificate is against the law and facts, inoperative qua his rights and as such, is liable to be corrected. The failure of the Petitioner to correct the same after being approached in this behalf, gave rise to necessary cause of action to institute the suit.

3. The suit was contested by the Petitioner both on legal and factual plane. The Trial Court framed issues on 03.03.2020 arising out of the divergent pleadings of the parties. After recording pro and contra evidence,

the Trial Court decreed the suit in favour of the Respondent. The Appeal preferred by the Petitioner also failed.

4. Learned counsel for the Petitioner vehemently argued that the suit for declaration filed on 23.05.2019 seeking correction of date of birth in the Matriculation certificate issued on 15.07.2005 was barred by time in view of Article 120 of First Schedule of the Limitation Act, 1908 (the “Act”). Even on merits, the Courts below did not consider the effect of admission forms of classes 9 & 10 (Ex. D-1 & Ex. D-2) submitted by the Respondent himself in which he wrote his date of birth as 07.03.1985 on the basis of which the Matriculation certificate was issued. He stressed that personal particulars of candidates with reference to educational Degrees is sacrosanct which cannot be allowed to be altered without any just and proper reason which would have disastrous effect on the sanctity of educational record. As such, the Courts below have misread and non-read the evidence on record.

5. Conversely, learned counsel for the Respondent submitted that correct date of birth of the Respondent is proved from his birth certificate and CNIC issued by concerned Union Council and NADRA which clearly depicted his date of birth as 25.12.1990. The fact of birth was recorded on 30.12.1990, only 5 days after his birth on 25.12.1990. There is no justification to rely upon the documents such as admission forms which were not filled by the Respondent and the Matriculation certificate was also issued on their basis which is liable to be corrected. Even, new CNIC of the Respondent has also been issued with his correct date of birth after obtaining a decree in a suit for declaration against NADRA on 10.12.2018. Hence, the concurrent findings of fact recorded by the Courts below are not liable to be interfered in exercise of Revisional Jurisdiction of this Court.

6. Arguments heard. Record perused.

7. The first aspect of the case pertains to the question of limitation. It is noted that the Trial Court while dealing with the issue of limitation in paragraph No. 14 of its Judgment observed that the suit of the Respondent was barred by time in terms of Article 120 of the Act but at the same time, concluded that the suit was not barred by time. The conclusion was self-contradictory to its finding. The Appellate Court also did not address this

issue. Article 120 of the Act is attracted in all suits for which no period of limitation is provided and stipulates a period of six years as period of limitation when the right to sue accrues. In the instant case, admittedly the Respondent submitted his admission forms of classes 9 & 10 himself by recording therein, his date of birth as 07.03.1985 and pursuant to the same, the Matriculation certificate was issued with the same date of birth on 15.07.2005. He acquiesced and accepted the same. In his suit, the Respondent claimed that cause of action arose four months prior to filing of suit when the Petitioner declined the sought correction. No application for correction is on record. It is quite obvious that the matter was agitated much after the lapse of period of limitation. No condonation of delay was sought by the Respondent and there is no explanation as to why the Respondent did not seek correction for more than 13 years from the date of issuance of Matriculation certificate which was in the knowledge of the Respondent. The right to sue accrued immediately for correction of date of birth after the issuance of Matriculation certificate in case he was aggrieved from the same. However, the Respondent instituted the suit on 23.05.2019 which was clearly barred by time. For reference, see cases titled, “Board of Intermediate and Secondary Education through Chairman and 3 others v. Javed Iqbal Bajwa” (2005 YLR 2114); and “Board of Intermediate and Secondary Education, Multan through Chairman v. Rana Ishfaq Ahmad and 3 others” (2016 MLD 1723).

8. The second aspect of the case pertains to the evidentiary value of the documents produced by the Respondent. He relied upon original birth certificate (Ex. P-1), attested copy of suit titled, “Muhammad Afzal v. Chairman NADRA” (Ex. P-2), Judgment & Decree passed in the said suit (Ex. P-3), photocopy of ID card (Mark-A) and photocopy of driving license (Mark-B). The birth certificate was issued on 31.08.2015 which states the date of entry of birth as 30.12.1990. It is importantly noted that in the suit for declaration filed by the Respondent against NADRA, he had himself admitted in paragraph No. 3 of his plaint that he contacted the NADRA Office, Arifwala on 31.12.2015 for the issuance of his CNIC under his original date of birth i.e. 25.12.1990 as per his birth certificate. It is pertinent to mention here that in the written statement filed by NADRA in the said

suit, it was categorically stated that as per online record, the Respondent had himself obtained his CNIC with his date of birth as 07.03.1985 without providing any birth certificate under application form No. AL00020538 from NADRA Office, Arifwala in the year 2005. As such, the Respondent used his CNIC with the date of birth as 07.03.1985 for more than 13 years and only filed the suit for declaration against NADRA on 08.10.2018 for correction of his date of birth in his first CNIC issued in the year 2005. Hence, except birth certificate, no other authentic document was produced by the Respondent to corroborate the birth certificate in comparison of admission forms of classes 9 & 10 and Matriculation certificate which unequivocally proved that the Respondent had himself stated his date of birth as 07.03.1985.

9. There is no explanation to the effect that if birth certificate used by the Respondent in obtaining the decree against NADRA and in the instant case was available since his birth, then why the same was not used or provided at the time of applying for CNIC for the first time. It is also strange to note that why the present Petitioner i.e. Board of Intermediate & Secondary Education, Multan was not impleaded as party in the first suit filed against NADRA for correction of his date of birth and why the Matriculation certificate and other documentary evidence were concealed by the Respondent in the said suit. It is quite obvious that the Respondent first filed a suit against NADRA and obtained a decree merely on the strength of his birth certificate and after changing his date of birth in his CNIC filed yet another suit for correction of his date of birth in the Matriculation certificate against the Petitioner. The mala fide of the Respondent in filing separate suits against NADRA and the Petitioner speaks volume regarding his intentions and refutes his assertion that the wrong date of birth was inadvertently recorded in the Matriculation certificate.

10. It was also argued that the date of birth of one of the brothers of the Respondent is 09.09.1985 and as such, it was unnatural that the date of birth of the Respondent can be 07.03.1985. There is no authenticity attached to the stated date of birth of the brother of the Respondent and same cannot be asserted to circumvent relief in the instant case. It is also noted that usually

correction of date of birth is allowed in a particular document to make it fall in line with other documents so that the date of birth is the same in all material documents. However, in the instant case, the Respondent's date of birth was recorded by himself as 07.03.1985 in the admission forms, Matriculation certificate and the first CNIC but the Respondent deliberately undertook a conscious and planned exercise to get it changed by first filing a suit against NADRA and then against the Petitioner. The birth certificate which was brought to light by the Respondent for the first time during his first suit against NADRA cannot be regarded as authentic evidence of his date of birth in the presence of first CNIC issued on 31.12.2015 and Matriculation certificate issued on 15.07.2005. The Courts below have committed an error in decreeing the suit of the Respondent by merely relying upon his birth certificate while ignoring other evidence on record. Hence, the evidence on record was misread by the Courts below while decreeing the suit of the Respondent.

11. Learned counsel for the Respondent placed reliance on cases titled, “Chairman, Board of Intermediate and Secondary Education, Multan and others v. Muhammad Shahzad Aslam” (2017 CLC Note 200); “Board of Intermediate and Secondary Education, Faisalabad v. Muhammad Waleed” (2021 MLD 123); “Federal Board of Intermediate and Secondary Education through Chairman v. Abeer Masood” (2017 CLC 1085); and “Federal Board of Intermediate and Secondary Education, Islamabad through Chairman v. Abeer Masood” (2020 SCMR 316). It is noted that the Courts allow the correction of date of birth on the basis of evidence on record when it is proved that the mistake is inadvertent, bona fide and would not cause any prejudice to the rights of other persons. In the above referred cases, not only the above parameters were fulfilled but the sought correction in date of birth was also within the permissible limits within the period of limitation. However, in the instant case, if the claimed date of birth is accepted, the Respondent would become younger by 5 years, 9 months and 18 days. The Matriculation certificate is regarded as an authentic document. The changes in the said document can only be allowed on the basis of cogent and irrefutable evidence when it becomes apparent that there was a bona fide, just and inadvertent mistake in recording of date of birth or any other

personal particular. Otherwise, the sanctity of the document would be grossly compromised. Moreover, any inadvertent mistake in this behalf is required to be agitated within the period of limitation which as stated above is conspicuously missing in the instant case. Needless to reiterate that educational record pertaining to personal particulars of a candidate is sacrosanct and its credibility, authenticity and genuineness is liable to be protected in the absence of any just and proper reason. For reference, see cases titled, “Chairman, Federal Board of Intermediate and Secondary Education v. Kumail Khan” (2022 SCMR 912); “Muhammad Arshad and another v. Mian Noor Ahmad and others” (2008 SCMR 713); and “Abdul Khaliq and another v. Maulvi Muhammad Noor and others” (PLD 2005 Supreme Court 962).

12. The upshot of the above discussion is that the Courts below have misread the evidence on record. Generally, this Court does not interfere in the concurrent findings of fact recorded by the Courts below but at the same time, when it is evident that evidence on record was misread or non-read, interference is warranted to correct the jurisdictional errors or miscarriage of justice. Accordingly, this Civil Revision is **accepted**; the impugned Judgments & Decrees dated 02.03.2021 and 11.10.2021 are set aside and in consequence thereof, the suit for declaration filed by the Respondent stands dismissed. No order as to costs.

(Abid Hussain Chattha)
Judge

Approved for reporting.

Judge

Abu Bakker